

Before You Start – Review Form 3 & Form 4

Before you start the steps for this forms packet, review the “Settlement Agreement” (Form 3) and “Exhibit A: Confidential Division of Property & Debts & Values” (Form 4).

Form 3 and Form 4 make up the Full Written Agreement for this divorce forms packet.

If you think you and your spouse can reach an agreement on **Every** paragraph of Form 3 **and** Form 4, follow the instructions to complete **All** of the forms and file with the Clerk of Court.

If you **Don’t Think** you and your spouse can reach an agreement on **Every** paragraph of Form 3 and Form 4, you **Can’t** use this packet of forms. See the other divorce forms and resources available through the North Dakota Legal Self Help Center at ndcourts.gov/legal-self-help/divorce.

This packet of forms is designed for to be used in divorces with uncomplicated circumstances and Doesn’t apply to every possible situation or circumstance. If this packet of forms doesn’t fit the divorce agreement between you and your spouse, you create all of your own divorce documents or retain a lawyer to create your divorce documents for you.

The Filing for Divorce Together – No Children forms packet may be used by spouses who agree in Writing on Every issue in the divorce.

Each of the following forms Must be completed and signed as indicated Before filing with the Clerk of Court.

- Form 1. Summons** (signed by Plaintiff and a clerk of court)
- Form 2. Complaint** (signed by Plaintiff)
- Form 3. Settlement Agreement** (signed by Plaintiff & Defendant in presence of notary public)
- Form 4. Exhibit A: Confidential Division of Property and Debt and Values** (signed by Plaintiff & Defendant in presence of notary public)
 - **(Optional) Form 4b: Summary Real Estate Disposition Judgment** (completed, not signed)
- Form 5. Admission of Service** (signed by Defendant)
- Form 6. Affidavit of Proof for Stipulated Judgment** (signed by Plaintiff in presence of notary public)
- Form 7. Findings of Fact, Conclusions of Law and Order for Judgment (Proposed)** (completed, not signed)
- Form 8. Judgment (Proposed)** (completed, not signed)
- Form 9. Confidential Information Form** (signed by Plaintiff & Defendant)

Don’t include this cover sheet when you serve or file the completed forms.

IN DISTRICT COURT, _____ COUNTY, NORTH DAKOTA

_____	}	
Plaintiff,	}	
	}	
vs.	}	COMPLAINT
	}	
_____	}	Civil No. _____
Defendant.	}	

1. The plaintiff has been a resident of the State of North Dakota for at least the last six months.
2. No separate proceeding for dissolution of marriage or legal separation has been started or is pending in the State of North Dakota or elsewhere.

3. Plaintiff's identifying information is as follows:

Full Name: _____
First Middle Last

Address: _____
Street Address Apt.

City County State Zip

Year of Birth: _____ Last Four Digits of Social Security Number: _____

4. Defendant's identifying information is as follows:

Full Name: _____
First Middle Last

Address: _____
Street Address Apt.

City County State Zip

Year of Birth: _____ Last Four Digits of Social Security Number: _____

5. The plaintiff and defendant were married on _____ (date)
at _____ (city), _____ (state), and ever since have
been and now are spouses.

6. That the parties have no minor children nor are expecting any children to be born of the
marriage.

7. The parties are owners of property, which should be divided by the Court and an equitable
portion thereof, awarded to each party.

8. The parties have accumulated a certain amount of debt throughout the marriage, which
should be divided, and an equitable portion thereof assessed to each party.

9. For some time prior to the commencement of this action, irreconcilable differences have
arisen between the plaintiff and defendant. That this has destroyed the legitimate objects of the
marriage and made it impossible for the plaintiff and defendant to live together as spouses.

WHEREFORE, plaintiff prays for Judgment as follows:

10. The bonds of matrimony presently existing between the plaintiff and defendant be wholly
dissolved and that the parties be granted an absolute decree of divorce from each other.

11. For an equitable division of the property.

12. For an equitable distribution of the accumulated debts of the parties.

13. For such other and further relief as may be equitable and just.

Dated this _____ day of _____, 20____.

(Signature of Plaintiff)

(Plaintiff's Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)